

**BEFORE THE
FEDERAL MARITIME COMMISSION**

20230930-DK-BUTTERFLY-1, INC. f/k/a BED BATH &
BEYOND INC., *Complainant*,

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT
(FMC#011982) consisting of EVERGREEN MARINE CORP.
(TAIWAN) LTD., EVERGREEN MARINE (UK) LIMITED,
ITALIA MARITTIMA SpA, EVERGREEN MARINE (HONG
KONG) LTD., AND EVERGREEN MARINE (SINGAPORE)
PTE. LTD., *Respondents*.

DOCKET NO. 24-12

**RESPONDENTS' MEMORANDUM IN RESPONSE
TO THE COMMISSION'S DECEMBER 19, 2025 ORDER**

Evergreen Line Joint Service Agreement (FMC#011982), Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Limited, Italia Marittima SpA, Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd. (collectively “Respondents”) hereby submit this memorandum in response to the Commission’s December 19, 2025 Order.

On December 18, 2025, Respondents requested a conference to address an evidentiary issue concerning Complainant's 46 C.F.R. 502.143(b)(6) corporate deposition testimony. On December 19, 2025, ALJ Alex Chintella issued an Order scheduling a conference on January 5, 2026, and directing, inter alia, Respondent to submit a memorandum by December 26, 2025 concerning the corporate deposition testimony issue. This is that memorandum.

The issue at hand concerns an evidentiary issue for consideration by the Commission in anticipation of summary judgment motions and final briefing, if necessary. It is not a discovery issue. Simply put, Respondents seek restrictions on the evidence Complainant is permitted to submit

in opposition to summary judgment motions and final briefing -- precluding any evidence that attempts to supplement the deposition testimony of Complainant's 46 C.F.R. 502.143(b)(6) witness. (Respondents do not intend to seek additional discovery unless the Commission indicates that it is unwilling to consider such restrictions or that it is necessary to resolve evidentiary issues before final briefing.)

The raising of this issue is timely. Complainant's initial brief is due February 6, 2026. Respondents' final brief is due March 6, 2026. Accordingly, the raising of this issue to the Commission over a month before Respondents receive Complainant's brief with evidentiary exhibits is timely, if not early.¹

The underlying facts concerning the present issue are straight forward. On August 15, 2025, Respondents took the deposition of Complainant by its corporate witness designee, David Kastin, pursuant to 46 C.F.R. 502.143(b)(6).² At the deposition, Kastin testified that he was testifying on behalf of the corporate Complainant on the topics noticed (as distinguished from his August 8, 2025 deposition in which he testified in his individual capacity). Kastin's August 15, 2025 testimony revealed that Complainant essentially had no information concerning the topics noticed relevant to the elements of the claims made against Respondents. Indeed, Kastin testified "I don't know" approximately 134 times during the deposition. Respondents repeatedly objected on the record about the witness' lack of knowledge and information. Complainants, however, maintained that Kastin was knowledgeable about the topics noticed.

¹ Respondents reserve the right to object to any exhibits proffered at that time.

² Further to ALJ Chintella's December 19, 2025 Order, Respondents provided a copy of the deposition transcript to the Commission by email.

Complainant had a duty to produce a witness knowledgeable on the topics noticed. 46 C.F.R. 502.143(b)(6); Rainey v. American Forest and Paper Assoc., Inc., 26 F.Supp.2d 82, 94 (D.D.C. 1998)("By commissioning the designee as the voice of the corporation, the [rule 30(b)(6)] obligates a corporate party 'to prepare its designee to be able to give binding answers' in its behalf."). Kastin essentially had no such knowledge. Complainant has refused to designate an alternate witness or supplement its corporate testimony. Instead, Complainant has repeatedly maintained that Kastin was knowledgeable. Accordingly, Complainant should be bound by its testimony on the topics noticed. Rainey, 26 F.Supp.2d at 84 ("Unless the [corporate party] can prove that the information was not known or was inaccessible, a corporation cannot later proffer new or different allegations that could have been made at the time of the 30(b)(6) deposition."); Fago v. M&T Mort. Corp., 235 F.R.D. 11, 24 (D.D.C. 2006)("the testimony of a Rule 30(b)(6) deponent binds the corporation to the explanation given"); Fraser Yachts Fla., Inc. v. Milne, No. 05-21168-CIV-JORDAN, 2007 WL 1113251, at *3 (S.D.Fla. Apr. 13, 2007)("the lack of knowledge answer is itself an answer which will bind the corporation at trial"); Ierardi v. Lorillard, No. 90-7049, 1991 WL 158911, at *4 (E.D.Pa. 1991)(designee who testifies that the corporation does not know the answers to the questions will not be allowed effectively to change its answer by introducing evidence at trial).

On November 25, 2025, Respondents invited Complainant to designate an additional corporate witness to testify about the topics that Kastin was unable to provide testimony. Again, Complainant refused to designate an alternate witness.

In a subsequent meet and confer conference conducted December 15, 2025, Respondents proposed stipulating that Complainant will not proffer any evidence to attempt to supplement its

502.143(b)(6) deposition testimony. Complainant, however, declined to so stipulate and stated they would proffer other fact evidence to supplement its corporate deposition testimony.

For the reasons set forth above, Complainant should not be allowed to supplement Kastin's corporate designee testimony and, instead, Complainant should be bound by it going forward.

Dated: December 26, 2025

Respectfully submitted,

BETANCOURT, GRECO & EVANS LLC

s/ Alton J. Evans, Jr.

Ronald Betancourt

rbetancourt@bge-law.com

John Greco

jgreco@bge-law.com

Alton J. Evans, Jr.

aevans@bge-law.com

151 Bodman Place - Suite 200
Red Bank, New Jersey 07701
732-530-4646

*Counsel for Respondents, Evergreen Line Joint
Service Agreement (FMC # 011982) et al.*

CERTIFICATE OF SERVICE

I certify, under penalty of perjury, that on this 26th day of December, 2025 the foregoing Memorandum was served via electronic mail on:

Karl C. Huth
Matthew J. Reynolds
Gregory A. Crapanzano II
Mohini Priya

huth@huthreynolds.com
reynolds@huthreynolds.com
gcrapanzano@huthreynolds.com
mpriya@huthreynolds.com

s/ Alton J. Evans, Jr.
Alton J. Evans, Jr.